

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- x
CALEB CEDANT,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257) AND SERGEANT DAMANY FERRIL (Tax No. 947648/Shield No. 11788),

Defendants.
----- x

Index No.:

Date Purchased:

SUMMONSPlaintiff designates Kings
County as the place of trialBasis of the venue is the Locus
of OccurrencePlaintiff resides at 1797
Nostrand Avenue, Brooklyn,
NY 11226

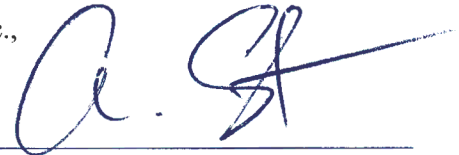
County of Kings

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff herein within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
January 27, 2023

Yours, etc.,



ALEXANDER STEPANKOVSKIY, ESQ.
LAW OFFICE OF
ALEXANDER STEPANKOVSKIY, PLLC
Attorneys for Plaintiff
CALEB CEDANT
44 Court Street, Suite 1217
Brooklyn, New York 11201
(718) 223-5531

TO: THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076)
c/o New York City Police Department – 79 PCT
263 Tompkins Avenue
Brooklyn, New York 11216

POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539)
c/o New York City Police Department – 79 PCT
263 Tompkins Avenue
Brooklyn, New York 11216

POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724)
c/o New York City Police Department – 79 PCT
263 Tompkins Avenue
Brooklyn, New York 11216

POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769)
c/o New York City Police Department – 79 PCT
263 Tompkins Avenue
Brooklyn, New York 11216

POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355)
c/o New York City Police Department – 79 PCT
263 Tompkins Avenue
Brooklyn, New York 11216

POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257)
c/o New York City Police Department – 79 PCT
263 Tompkins Avenue
Brooklyn, New York 11216

SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788)
c/o New York City Police Department – 79 PCT
263 Tompkins Avenue
Brooklyn, New York 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
CALEB CEDANT,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257) AND SERGEANT DAMANY FERRIL (Tax No. 947648/Shield No. 11788),

Defendants.
----- X

Plaintiff, by his attorneys, LAW OFFICE OF ALEXANDER STEPANKOVSKIY, PLLC, complaining of the Defendants herein, respectfully alleges, upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR
ASSAULT AND BATTERY ON BEHALF OF CALEB CEDANT**

1. That at all times hereinafter mentioned, Plaintiff, CALEB CEDANT, was and still is a resident of the County of Kings, City and State of New York.

2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.

3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.

4. That prior hereto on February 14, 2022, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK, refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on May 19, 2022, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

6. That on November 15, 2021, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), as agents, servants and/or employees.

7. That on November 15, 2021, and at all times hereinafter mentioned and upon information and belief, the plaintiff, CALEB CEDANT, was lawfully present at or near the corner of Marcy Avenue and Hart Street, County of Kings, City and State of New York.

8. That on November 15, 2021, and at all times hereinafter mentioned and upon information and belief, the plaintiff, CALEB CEDANT, was falsely arrested by defendants, POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468;

Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

9. That on November 15, 2021, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

10. That on November 15, 2021, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), who falsely arrested the plaintiff, CALEB CEDANT, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

11. That on November 15, 2021, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

12. That as a result of the aforesaid false arrest and confinement, plaintiff, CALEB CEDANT, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

13. By the reason of the foregoing, the plaintiff, CALEB CEDANT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF CALEB CEDANT**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “13” inclusive with the same force and effect as if more fully set forth at length herein.

15. That the defendants, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), who violated the civil rights of the plaintiff, CALEB CEDANT.

16. That the defendants, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, CALEB CEDANT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF CALEB CEDANT**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “17” inclusive with the same force and effect as if more fully set forth at length herein.

19. That on November 15, 2021, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), were acting within the scope of their employment when they arrested and confined the plaintiff.

20. That on November 15, 2021, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, CALEB CEDANT, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

22. By the reason of the foregoing, the plaintiff, CALEB CEDANT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT ON BEHALF OF CALEB CEDANT**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “22” inclusive with the same force and effect as if more fully set forth at

length herein.

24. That on November 15, 2021, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

25. That the defendants, POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, CALEB CEDANT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF CALEB CEDANT**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at

length herein.

28. That the defendants, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, CALEB CEDANT.

30. That as a result of said intentional and negligent acts, the Plaintiff, CALEB CEDANT, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By the reason of the foregoing, the plaintiff, CALEB CEDANT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
CIVIL RIGHTS VIOLATION ON BEHALF OF CALEB CEDANT**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That the defendants, THE CITY OF NEW YORK, including but not limited to

POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), were acting under the color of law and within the scope of their authority, falsely arrested and falsely imprisoned the plaintiff, CALEB CEDANT, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

34. That the defendants, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), acting under color of law and within the scope of their authority, deprived the plaintiff, CALEB CEDANT, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

35. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

36. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

37. That the deprivation by the defendants of plaintiff's civil rights was a result of the

defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NÚÑEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), acting under color of law and within their authority as law enforcement officers within the employ of the defendant, THE CITY OF NEW YORK.

38. That the defendants' actions were not privileged or immune.

39. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), were not acting with immunity when they deprived plaintiff of his civil rights.

40. By the reason of the foregoing, the Plaintiff, CALEB CEDANT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION ON BEHALF OF CALEB CEDANT**

41. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "40" inclusive with the same force and effect as if more fully set forth at length herein.

42. That on November 15, 2021, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

43. That on November 15, 2021, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), were acting within the scope of their employment, maliciously prosecuted the plaintiff.

44. That on November 15, 2021, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to

reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

45. By reason of the foregoing, plaintiff, CALEB CEDANT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF CALEB CEDANT**

46. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "45" inclusive with the same force and effect as if more fully set forth at length herein.

47. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

48. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to defendants, POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257), and SERGEANT DAMANY FERRIL (Tax No. 947648; Shield No. 11788), herein-above alleged.

49. By the reason of the foregoing, the plaintiff, CALEB CEDANT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, Plaintiff, CALEB CEDANT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; Plaintiff, CALEB CEDANT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; Plaintiff, CALEB CEDANT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; Plaintiff, CALEB CEDANT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; Plaintiff, CALEB CEDANT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; Plaintiff, CALEB CEDANT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; Plaintiff, CALEB CEDANT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; Plaintiff, CALEB CEDANT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; together with the costs and disbursements of this action.

Dated: Brooklyn, New York
January 27, 2023

Yours, etc.,



ALEXANDER STEPANKOVSKIY, ESQ.
LAW OFFICE OF
ALEXANDER STEPANKOVSKIY, PLLC
Attorneys for Plaintiff
CALEB CEDANT
44 Court Street, Suite 1217
Brooklyn, New York 11201
(718) 223-5531

VERIFICATION

STATE OF NEW YORK)
 ss.:
COUNTY OF KINGS)

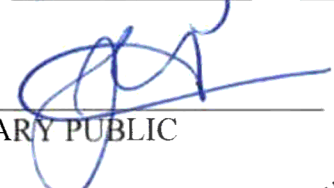
CALEB CEDANT, being duly sworn, deposes and says:

I am the plaintiff in the within action. I have read the foregoing **COMPLAINT** and know the contents thereof; that the same is true to my knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.



CALEB CEDANT

Sworn to before me this 27th
day of January, 2023



NOTARY PUBLIC



Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CALEB CEDANT,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER GREGORY ANTOINE (Tax No. 966441; Shield No. 16076), POLICE OFFICER MAXIME MULLER (Tax No. 964670; Shield No. 3539), POLICE OFFICER BERMALY NUNEZ (Tax No. 939796; Shield No. 13724), POLICE OFFICER ROBERT HUNTER (Tax No. 962468; Shield No. 21769), POLICE OFFICER SHUNJIE LAI (Tax No. 967155; Shield No. 25355), POLICE OFFICER JOSE JIMENEZ (Tax No. 966645; Shield No. 16257) AND SERGEANT DAMANY FERRIL (Tax No. 947648/Shield No. 11788),

Defendants.

SUMMONS AND VERIFIED COMPLAINT

**LAW OFFICE OF
ALEXANDER STEPANKOVSKIY, PLLC**
Attorneys for Plaintiff
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TO: